

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Adler	Team: Squad #01	CCRB Case #: 202101390	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/19/2021 4:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/19/2022	Precinct: 42		
Date/Time CV Reported Fri, 02/19/2021 6:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/03/2021 1:18 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Alex Almonte Pichardo	14825	968930	042 PCT
2. LT Brian Query	00000	937315	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Elvin Castillo	28700	969000	042 PCT
2. POF Idalia Castillo	16142	957433	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Alex Almonte Pichardo	Abuse: Police Officer Alex Almonte Pichardo questioned § 87(2)(b)	A . Exonerated
B . LT Brian Query	Abuse: Lieutenant Brian Query stopped § 87(2)(b)	B . Exonerated
C . LT Brian Query	Abuse: Lieutenant Brian Query disseminated information regarding § 87(2)(b)'s medical status.	C . Unsubstantiated
D . LT Brian Query	Abuse: Lieutenant Brian Query threatened to arrest § 87(2)(b)	D . Exonerated
E . LT Brian Query	Abuse: Lieutenant Brian Query threatened to remove § 87(2)(b) to the hospital.	E . Exonerated
F . LT Brian Query	Abuse: Lieutenant Brian Query failed to provide § 87(2)(b) with a business card.	F . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On February 19, 2021, § 87(2)(b) filed this complaint over the phone with IAB on his own behalf, generating original log number 2021-03979. The CCRB received the complaint on March 3, 2021.

On February 19, 2021, at approximately 4:00 P.M., PO Alex Almonte Pichardo, assigned to the 42nd Precinct, questioned § 87(2)(b) in the lobby of § 87(2)(b) in the Bronx (**Allegation A, Abuse of Authority:** § 87(2)(g) Lt. Brian Query, also of the 42nd Precinct, then stopped § 87(2)(b) (**Allegation B, Abuse of Authority:** § 87(2)(g) Lt. Query improperly disseminated § 87(2)(b) medical information (**Allegation C, Abuse of Authority:** § 87(2)(g) threatened to arrest him (**Allegation D, Abuse of Authority:** § 87(2)(g) and threatened to remove him to the hospital (**Allegation E, Abuse of Authority:** § 87(2)(g) Lt. Query failed to provide § 87(2)(b) with a business card (**Allegation F, Abuse of Authority:** § 87(2)(g) § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was not arrested or issued any summonses.

The investigation obtained body-worn camera (BWC) footage from PO Almonte Pichardo and Lt. Query, as well as PO Elvin Castillo and PO Idalia Castillo, also of the 42nd Precinct (**01-04 Board Review**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Alex Almonte Pichardo questioned § 87(2)(b)

Allegation (B) Abuse of Authority: Lieutenant Brian Query stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Lieutenant Brian Query disseminated information regarding § 87(2)(b) medical status.

Allegation (D) Abuse of Authority: Lieutenant Brian Query threatened to arrest § 87(2)(b)

Allegation (E) Abuse of Authority: Lieutenant Brian Query threatened to remove § 87(2)(b) to the hospital.

It is undisputed that on February 19, 2021, at approximately 4:00 P.M., § 87(2)(b) went down to the lobby of his apartment building at § 87(2)(b) in the Bronx while quarantining due to COVID-19. In the lobby, § 87(2)(b) sat in a chair and spoke with security guard § 87(2)(b) while holding a marijuana joint in his hand. § 87(2)(b) the building's manager and substance abuse counselor, called 911 and reported that § 87(2)(b) was coughing at people in the lobby with his mask off while positive for COVID-19. PO Almonte Pichardo and PO Elvin Castillo responded and asked § 87(2)(b) for his ID, which he provided. § 87(2)(b) also provided the officers with a medical marijuana card. EMTs responded at the same time as the officers, asked § 87(2)(b) if he was sick, and left when he stated he was not. After speaking with § 87(2)(b) for several minutes, PO Almonte Pichardo called Lt. Query, who arrived soon thereafter with PO Idalia Castillo. § 87(2)(b) was getting on the elevator to go to his apartment as Lt. Query arrived and officers held the elevator doors open to prevent it from leaving the first floor. Lt. Query spoke with § 87(2)(b) and then with § 87(2)(b) and § 87(2)(b) a case manager for the building. Lt. Query then allowed § 87(2)(b) to go back to his apartment without issuing any summonses.

§ 87(2)(b) and § 87(2)(b) both testified that § 87(2)(b) is a building for individuals with

chronic medical or homelessness issues **(09-10 Board Review)**. The building employs case managers and other support staff to assist residents with stability and support services.

§ 87(2)(b) testified that his quarantine was self-imposed due to a close contact who had tested positive for COVID-19 **(05-06 Board Review)**. He had not been tested for COVID-19 and did not have a cough or other symptoms. In the lobby, § 87(2)(b) collected his mail and went out to the courtyard to smoke the marijuana joint, which contained less than one gram of marijuana. When he finished smoking, he sat in the lobby and spoke to § 87(2)(b). Approximately 15 to 20 minutes later, PO Almonte Pichardo and PO Elvin Castillo arrived and said they were investigating a call about someone sitting in the lobby. While providing his ID, § 87(2)(b) told the officers that he was carrying a marijuana joint and had a medical marijuana card. The officers looked at the joint and the medical marijuana card. § 87(2)(b) then asked both officers several times if he was being detained. The officers still had § 87(2)(b) ID. They looked at each other and one said, “The lieu is coming. He’ll know what to do.” § 87(2)(b) again asked if he was being detained and the officers did not answer. He then told them he was going upstairs and walked toward the elevator. He asked the officers to return his ID, but they did not respond. § 87(2)(b) entered the elevator and told the officers to put his ID in the mail. He then heard Lt. Query enter the building and say, “Stop him!” Officers stuck their hands inside the elevator door to stop it from closing and blocked the exit so that § 87(2)(b) could not leave. § 87(2)(b) asked Lt. Query if he was being detained but he did not respond. Lt. Query returned § 87(2)(b) ID and said he was conducting a second investigation about the 911 call. § 87(2)(b) said that he was not the individual referenced in the 911 call and was self-quarantining due to an exposure to COVID-19. Lt. Query took § 87(2)(b) ID and medical marijuana card, told PO Elvin Castillo and PO Idalia Castillo to hold him there, and left. When Lt. Query came back, he stated several times that § 87(2)(b) was positive for COVID-19 while other residents of the building and security guards were present. § 87(2)(b) asked him to stop doing so because he was not positive for COVID-19 and Lt. Query was not allowed to disseminate private medical information. Lt. Query returned § 87(2)(b) cards and said that he could arrest him for the marijuana. § 87(2)(b) responded that the marijuana was a violation, so at most Lt. Query could issue a desk appearance ticket, which would be dismissed due to the medical marijuana card. Lt. Query then said that he could “EDP” § 87(2)(b) and send him to the hospital without providing any reasons why he could do so. § 87(2)(b) stated that he was not an emotionally disturbed person and was only upset at being detained. Throughout the incident, § 87(2)(b) did not make any threats against himself or others and remained calm, becoming visibly upset only when the officers would not listen to him.

§ 87(2)(b) and Security Guard § 87(2)(b) all testified that the lobby of § 87(2)(b) has no seating and that residents do not typically sit or loiter there **(07-11 Board Review)**. § 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) was positive for COVID-19 and was supposed to be quarantined. § 87(2)(b) and § 87(2)(b) both testified that, while sitting in the hallway, § 87(2)(b) deliberately removed his mask and coughed at them. § 87(2)(b) and § 87(2)(b) both stated that when PO Almonte Pichardo and PO Elvin Castillo arrived, they continually asked § 87(2)(b) to go upstairs. § 87(2)(b) and § 87(2)(b) all testified that they did not hear what Lt. Query said to § 87(2)(b) in the elevator. The testimony of the building staff is consistent with an incident report provided by the building’s owner **(12 Board Review)**.

§ 87(2)(b) testified that when § 87(2)(b) arrived in the lobby, he sneezed near § 87(2)(b) **(07 Board Review)**. § 87(2)(b) then stated that since he had been diagnosed with COVID-19, § 87(2)(b) would get 14 days off due to quarantining rules. § 87(2)(b) was holding a lit marijuana cigarette in his hand but was not smoking it in the lobby. When PO Almonte Pichardo and PO Elvin Castillo arrived, they asked him what was going on and if he had a card for the marijuana, which § 87(2)(b) provided. § 87(2)(b) was occupied with his work duties and so did not hear the majority

of the conversation between PO Almonte Pichardo, PO Elvin Castillo, and § 87(2)(b)

§ 87(2)(b) testified that on the incident date, he received a call from § 87(2)(b) who said that § 87(2)(b) approached him, told him he was positive for COVID-19, took his mask off, and coughed at him **(08-09 Board Review)**. Subsequently, § 87(2)(b) removed his mask and coughed at § 87(2)(b) and § 87(2)(b) called an internal crisis unit, which keeps individuals experiencing a crisis under 72 hours of observation at a nearby medical center. § 87(2)(b) called the crisis unit because he felt that “no one in their right mind” would take off their mask and cough in someone’s face if they knew they were positive for COVID-19. When the crisis unit did not respond, § 87(2)(b) called 911. When PO Almonte Pichardo and PO Elvin Castillo arrived, § 87(2)(b) went into the hallway and explained to the officers that § 87(2)(b) was supposed to be quarantining but was coughing on everybody. § 87(2)(b) did not witness any interactions between PO Elvin Castillo, PO Almonte Pichardo, and § 87(2)(b). Later, § 87(2)(b) stood outside his office door and saw Lt. Query and PO Idalia Castillo standing approximately 15 feet away, in front of the elevator doors. The officers were telling § 87(2)(b) to calm down, put on his mask, and go to his apartment. § 87(2)(b) did not hear either officer say anything about § 87(2)(b) being positive for COVID-19. Two building residents entered the building at approximately this time, one of whom was watching § 87(2)(b) and the officers interact. § 87(2)(b) called this individual into his office to keep her safe. § 87(2)(b) was unwilling to provide the individual’s contact information to the investigation.

At 00:00 in PO Almonte Pichardo’s BWC, as the officers and EMTs enter § 87(2)(b) § 87(2)(b) is sitting on a wooden chair toward the back of the lobby, talking on the phone **(01 Board Review)**. At 02:30, § 87(2)(b) tells officers that he has a “blunt” and a medical marijuana card. At 06:11, after several minutes of asking § 87(2)(b) to go upstairs, PO Almonte Pichardo tells Lt. Query over the phone that § 87(2)(b) allegedly coughed on people, is “uncooperative, [...] has a blunt in his hand,” and claims to have a medical marijuana license. At 07:12, after ending the phone call, PO Almonte Pichardo asks § 87(2)(b) for his medical marijuana license and § 87(2)(b) provides a card. At 08:15, § 87(2)(b) states, “Am I free to go?” PO Almonte Pichardo says no. § 87(2)(b) asks why his is not free to go and PO Almonte Pichardo does not respond. PO Elvin Castillo states, “So are you going to go up to your—?” § 87(2)(b) states, “I asked if I’m free to go.” PO Almonte Pichardo states in a low voice, “No, the lieutenant said hold him. He wants to come talk to him.” At 09:40, § 87(2)(b) asks if he is free to leave and PO Elvin Castillo states that the lieutenant is on his way. At 11:03, § 87(2)(b) stands up and asks PO Almonte Pichardo to return his ID. § 87(2)(b) then picks up his chair, walks toward the elevator, and tells the officers to put his ID in the mail. At 11:33, PO Almonte Pichardo hands § 87(2)(b) his ID. Prior to this point, PO Elvin Castillo and PO Almonte Pichardo do not ask § 87(2)(b) any questions beyond his name, what happened, and why he is in the lobby. At 12:40, Lt. Query rounds the corner while § 87(2)(b) is entering the elevator. Lt. Query states, “Whoa, sir,” walks to the elevator, and holds it open with his hand. § 87(2)(b) states, “They already said I could go,” and Lt. Query responds that no one said he could go. At 13:40, Lt. Query asks PO Almonte Pichardo if § 87(2)(b)’s medical marijuana card is valid. PO Almonte Pichardo’s response is inaudible. Lt. Query then asks § 87(2)(b) for his medical marijuana card and § 87(2)(b) provides it. Lt. Query walks away and tells PO Almonte Pichardo to hold the elevator. At 15:05, § 87(2)(b) asks if he is being detained and, from a distance, Lt. Query states, “Yes, you are.” At 19:50, Lt. Query states in a low voice, “Apparently, you’re positive for COVID. [...] I need you to be aware that I can arrest you for the marijuana [...] You have made the staff at this location feel uneasy. [...] I can actually arrest you for the marijuana, send you to Central Booking, or I can send you to the hospital for psychiatric care. If I have to come back here today, I’m going to arrest you and I’m going to send you to the hospital. [...] Don’t threaten the staff anymore.” The video shows only the elevator and not the adjacent hallways or lobby so it is unclear if any other civilians are nearby while Lt. Query talks to § 87(2)(b). At 21:36, Lt. Query hands § 87(2)(b) his ID and the officers walk away.

At 04:15 in Lt. Query's BWC, Lt. Query is speaking with § 87(2)(b) and § 87(2)(b) inside § 87(2)(b)'s office (**02 Board Review**). § 87(2)(b) states that his supervisor informed him that § 87(2)(b) is positive for COVID-19 and needs to be quarantined. He further states that when he and § 87(2)(b) later encountered him sitting in the hallway, § 87(2)(b) took off his mask and coughed on them. Lt. Query states, "He coughed on you guys on purpose?" § 87(2)(b) and § 87(2)(b) say yes.

At 19:43 in PO Elvin Castillo's BWC, another civilian approaches the elevator from the lobby (**03 Board Review**). Lt. Query tells the civilian, "It's going to be a minute." At 19:53, Lt. Query states, "Apparently you're positive for COVID." The video does not show the hallway at this point and it is not clear where the civilian is. At 19:56, the other civilian is approximately 10 feet from the elevator, walking toward § 87(2)(b)'s office, where § 87(2)(b) is standing just outside the door.

PO Almonte Pichardo testified that the only crime of which he suspected § 87(2)(b) was a potential marijuana violation (**13 Board Review**). When § 87(2)(b) provided his ID at the officers' request, he also provided a medical marijuana card. PO Almonte Pichardo did not recall what the medical marijuana card looked like and was not trained to know if it was valid. When he and PO Elvin Castillo asked § 87(2)(b) questions about what happened, § 87(2)(b) yelled at them and refused to provide information. PO Almonte Pichardo called Lt. Query because he was unsure about the laws regarding marijuana at the time and § 87(2)(b) was being uncooperative. He told Lt. Query that a 911 caller reported § 87(2)(b) was coughing in the hallway and that § 87(2)(b) was holding a marijuana joint. Lt. Query said he would come assess the situation. PO Almonte Pichardo did not recall if Lt. Query issued any commands over the phone. § 87(2)(b) was free to leave until Lt. Query arrived and issued a direct order to detain him. Lt. Query threatened to arrest § 87(2)(b) for the marijuana and for coughing without a mask but stated that he would use his discretion and allow § 87(2)(b) to return to his apartment as long as he left the security guards alone. PO Almonte Pichardo did not know if § 87(2)(b) needed medical attention or could have been forcibly removed to the hospital at that point. § 87(2)(b) did not appear to be a danger to himself but could have been a danger to others because he was irate and it was unclear how he would react if someone said something he did not like. PO Almonte Pichardo did not hear § 87(2)(b) make any threats. He did not recall if Lt. Query stated that § 87(2)(b) was positive for COVID-19 or if he threatened to remove him to the hospital. PO Almonte Pichardo did not recall if any other civilians were present while Lt. Query was speaking with § 87(2)(b). After watching his BWC from 08:30 to 08:48, PO Almonte Pichardo stated that he did not recall why he answered no when § 87(2)(b) asked if he was free to leave; he did not recall if Lt. Query issued any commands over the phone regarding detaining § 87(2)(b). To his recollection, § 87(2)(b) was free to leave at that point.

Lt. Query testified that he heard the radio message about the incident but did not recall what information was provided (**14 Board Review**). When PO Almonte Pichardo called, he told Lt. Query that § 87(2)(b) was smoking marijuana in the hallway and coughing at staff members after removing his mask. Since PO Almonte Pichardo requested a supervisor, Lt. Query stated that he was on his way but did not issue any commands. At that point, PO Almonte Pichardo and PO Elvin Castillo had already detained § 87(2)(b). When Lt. Query arrived on scene, § 87(2)(b) was entering an elevator while PO Almonte Pichardo and PO Elvin Castillo gave him lawful orders to stop. Lt. Query held the elevator and told § 87(2)(b) to wait while he investigated. Lt. Query did not stop § 87(2)(b) since PO Almonte Pichardo and PO Elvin Castillo had previously detained him and had not given him permission to leave. Lt. Query interviewed § 87(2)(b) who provided an ID and a card that he claimed allowed him to smoke marijuana where he deemed fit. Lt. Query had never seen such a card before and did not have time to examine it, so did not know if it was valid. Lt. Query did not see any marijuana in § 87(2)(b) possession. He did not believe § 87(2)(b) was a danger

to others but since § 87(2)(b) was speaking incoherently, Lt. Query thought he might need to be more thoroughly evaluated by medical staff to determine if he could be a danger to himself. Lt. Query suspected § 87(2)(b) of committing crimes, namely reckless endangerment due to the coughing. Lt. Query then interviewed § 87(2)(b) and § 87(2)(b) who stated that § 87(2)(b) was positive for COVID-19, was supposed to be quarantined, had smoked marijuana in the building's hallway, and had intentionally removed his mask and coughed and spat at them. After this conversation, Lt. Query felt that the situation would be resolved if § 87(2)(b) just went to his apartment. At that point, Lt. Query could have arrested § 87(2)(b) for reckless endangerment or smoking the marijuana cigarette in public. Lt. Query did not threaten to arrest § 87(2)(b) or remove him to the hospital but rather informed him of his options, which included going home, being arrested for reckless endangerment for spitting after removing his mask and being removed to the hospital. Lt. Query did not believe that he stated that § 87(2)(b) was positive for COVID-19. He did not recall any civilians being present at the time of this conversation. After watching his BWC from 01:00 to 01:28, in which he first encounters § 87(2)(b) states, "Whoa, sir," and holds the elevator door open, Lt. Query reiterated that he did not stop § 87(2)(b) because PO Almonte Pichardo and PO Elvin Castillo had already stopped him and had not given him permission to leave. After watching the same video from 08:14 to 08:23 in which Lt. Query states that § 87(2)(b) was "positive for COVID," Lt. Query testified that he did not believe there were any civilians in the vicinity at the time. After watching the same footage from 08:28 to 09:03, Lt. Query reiterated that he did not threaten to arrest § 87(2)(b) or remove him to the hospital but rather presented these as the options at his disposal.

At 00:02 in the first 911 call recording related to NYPD Event #§ 87(2)(b) § 87(2)(b) tells the operator that a client who has COVID-19 "took his mask off and [is] coughing at anyone that walks by," (15 Board Review). At 00:45, when the operator asks § 87(2)(b) if the client has a "mental condition," § 87(2)(b) states, "I'm thinking that he has to have one if he's taking off his mask and coughing at everybody knowing that he got COVID-19." At 01:00 in the radio messages for the same event, the operator states that someone with COVID is coughing on people in the lobby.

New York Penal Law 120.20 states that individuals are guilty of reckless endangerment in the second degree when they "recklessly" engage in conduct "which creates a substantial risk of serious physical injury to another person," (16 Board Review). Reckless endangerment in the second degree is a Class A misdemeanor.

According to New York Penal Law 221.10, criminal possession of marijuana in the fifth degree involves an individual knowingly possessing marijuana that is "burning or open to public view" in a public place (17 Board Review).

According to *People v. De Bour*, 40 NY 2d 210, while "police officers may not seize an individual, either physically or constructively, without some articulable justification [...], not every encounter constitutes a seizure," (18 Board Review). When officers have a "founded suspicion that criminal activity is afoot," they may gather "explanatory information." This does not constitute a seizure. When "a police officer entertains a reasonable suspicion that a particular person has committed, is committing, or is about to commit a felony or misdemeanor," they are authorized to forcibly stop and detain that person.

According to Patrol Guide Procedure 216-11, "information concerning a prisoner's or victim's affliction with a communicable disease must be kept confidential" and "should not be released to the public," (19 Board Review).

Patrol Guide Procedure 221-13 defines an "emotionally disturbed person" as someone who "appears

to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others,” **(20 Board Review)**. Officers are to take steps to remove such an individual to the hospital when they reasonably believe that the person “must be taken into protective custody because the person is conducting himself in a manner likely to result in a serious injury to himself or others.”

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation (F) Abuse of Authority: Lieutenant Brian Query failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) testified that no officer provided him with their business card **(05-06 Board Review)**. He did not request any officer’s business card.

Lt. Query testified that he did not provide § 87(2)(b) with a business card and was not required to do so because he had probable cause to arrest § 87(2)(b) **(14 Board Review)**. He identified himself verbally to § 87(2)(b)

Lt. Query’s BWC footage shows that at no time during the incident did he offer § 87(2)(b) a business card **(02 Board Review)**.

According to NYPD Administrative Guide §14-174, uniformed members of the service are required to offer a business card upon the conclusion of law enforcement activities that do not result in arrests or summonses (**25 Board Review**). Such provision of a business card is *in addition to* the requirement that officers introduce themselves by providing their name, rank, and command. This requirement includes “pedestrian stops where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter at will.”

§ 87(2)(b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**22 Board Review**).
- Lt. Query has been a member of service for 17 years and has been a subject in eight additional CCRB complaints and 16 additional allegations, one of which was substantiated:
 - 201706222 involved a substantiated allegation of refusal to obtain medical treatment against Lt. Query. The Board recommended Command Discipline B and the NYPD imposed no penalty.

§ 87(2)(g)

- PO Almonte Pichardo has been a member of service for two years and has been a subject in one additional CCRB complaint and one additional allegation, which was not substantiated.

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 10, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**23 Board Review**).

§ 87(2)(b)

Squad: 1

Investigator:	<u>Rachel Ader</u>	<u>Investigator Rachel Adler</u>	<u>4/21/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Mgr. Joy Almeyda</u>	<u></u>	<u>4.22.22</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date